

Judgment Sheet
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT

Crl. Appeal No.51-ATA/2018
(Jamshaid alias Bablu vs. The State & another)

Crl. Appeal No.53-ATA/2018
(Sana Ullah alias Fouji vs. The State & another)

Crl. Appeal No.86-ATA/2018
(Rashid Mehmood vs. The State & another)

JUDGMENT

Date of hearing: 17.02.2022

Appellants by: Sardar Afzaal Ahmed Mudaher, Advocate
(Crl. Appeal No.51-ATA/2018)
M/s Haroon-ur-Rasheed and Zafar Iqbal
Awan, Advocates (Crl. Appeal No.53-
ATA/2018).
Syed Zeeshan Haider, Advocate (Crl.
Appeal No.86-ATA/2018)

State by: Ch. Asghar Ali Gill, Deputy Prosecutor
General.

Complainant by: Ch. Irfan Ali Sindhu, Advocate.

ALI ZIA BAJWA, J.:- Through this single judgment, we intend to decide Crl. Appeal No.51-ATA/2018, titled “Jamshaid alias Bablu vs. The State & another”, Crl. Appeal No.53-ATA/2018, titled “Sana Ullah alias Fouji vs. The State & another” & Crl. Appeal No.86-ATA/2018, titled “Rashid Mehmood vs. The

State & another” as these are arising out of one and the same judgment passed by learned trial court.

2. Jamshaid alias Bablu son of Ali Sher, caste Abbasi, resident of Hashim colony, Haroonabad, District Bahawalnagar, Sana Ullah alias Fouji son of Munir Ahmad, caste Arain, resident of Hashim colony, Haroonabad, District Bahawalnagar and Rashid Mahmood son of Ghulam Rasool, caste Arain, resident of Toba Qalander Shah Basti Ucharrki, Tehsil Haroonabad, District Bahawalnagar, appellants, have assailed their convictions and sentences passed by learned Judge, Anti-Terrorism Court, Bahawalpur Division, Bahawalpur vide judgment dated 17.01.2018 in case FIR No.190/2016, dated 26.06.2016, offences under Sections 365-A, 201 & 34 PPC read with Section 7(e) of Anti-Terrorism Act, 1997, registered with Police Station City Haroonabad, District Bahawalnagar; whereby they were convicted and sentenced as under:-

Sr.#	Name of the appellant	Conviction and sentence
(1)	Jamshaid alias Bablu	➤ Under Section 365-A/34 PPC, sentenced to undergo imprisonment for life with forfeiture of whole property (moveable and immoveable) in favour of the Government. ➤ Under Section 7(e) of the Anti-Terrorism Act, 1997, sentenced to undergo imprisonment for life.
(2)	Sana Ullah alias Fouji	➤ Under Section 365-A/34 PPC, sentenced to undergo imprisonment for life with forfeiture of whole property (moveable and immoveable) in favour of the Government. ➤ Under Section 201, PPC,

		sentenced to undergo R.I. for five years with fine of Rs.50,000/- and in case of default in payment thereof, to further undergo S.I. for six months. ➤ Under Section 7(e) of the Anti-Terrorism Act, 1997, sentenced to undergo imprisonment for life.
(3)	Rashid Mahmood	➤ Under Section 365-A/34 PPC, sentenced to undergo imprisonment for life with forfeiture of whole property (moveable and immoveable) in favour of the Government. ➤ Under Section 7(e) of the Anti-Terrorism Act, 1997, sentenced to undergo imprisonment for life.

All the sentences awarded to the appellants were directed to run concurrently and benefit of Section 382-B, Cr.P.C. was also extended in their favour.

3. The prosecution story as narrated in the FIR (Exh.PA/2) lodged on the application (Exh.PA) of Abdul Sattar, complainant (PW-3) is that he is resident of Al-Hashim Colony, Haroonabad and running a shuttering shop in that locality. Complainant has five sons, namely, Nasir Ali, Asif Ali, Rashid Ali, Shafaqat Ali and Muhammad Shakeel. Except Muhammad Shakeel, all other sons of the complainant are married. The eldest son of complainant Nasir Ali had gone to Saudi Arabia to earn his livelihood. Said Nasir Ali has two sons, namely, Ali Raza aged 06-years, Ali Haider aged 04-years and one daughter. All the children of complainant are residing with him. On 25.06.2016, the complainant along with his grandsons, namely, Ali Haider son of Nasir Ali aged 04-years, Ghulam Mohy-ud-Din son of Asif Ali aged 04-years and Ghulam

Mohy-ud-Din aged 05-years went to offer Maghrib prayer in the mosque adjacent to his house. The complainant was offering prayer when his grandsons went out of the mosque along with other children of the locality. After offering Maghrib prayer when the complainant came out of the mosque, his grandsons were not present there. The complainant thought that they might have gone home. When the complainant reached his house, he found Ali Haider was not present there. Upon asking, the inmates of the house told that Ali Haider did not reach there. He became worried and raised hue and cry whereupon Muhammad Shafique and Muhammad Shakeel came there and complainant told the whole story to them. In the meanwhile, other residents of locality also reached there and they all started searching Ali Haider but failed to trace out his whereabouts. The complainant alleged that he had no enmity with anyone and some unknown accused due to unknown reasons kidnapped his grandson.

4. After registration of FIR, investigation of this case was entrusted to Muhammad Akram Kaifi, SI (PW-9) who along with other police officials reached the place of occurrence and recorded statements of PWs under Section 161, Cr.P.C. He inspected the place of occurrence and prepared rough site plan (Exh.PJ). On 27.06.2016, Abdul Sattar, complainant appeared before the investigating officer along with PWs and kidnaped Ali Haider and submitted an application (Exh.PA/3) to him. He recorded supplementary statement of the complainant and added offence punishable under Section 365-A, PPC in the case.

5. Subsequently, investigation of this case was entrusted to Arshad Zaman, Inspector (PW-6) who on the pointing out of PWs inspected the place of recovery of kidnaped and prepared rough site plan (Exh.PG). On 29.06.2016, he arrested accused Sana Ullah alias Fouji, Jamshaid alias Bablu and Rashid Mehmood and lodged them behind judicial lock-up for Test Identification Parade (TIP), which was

conducted under the supervision of Mukarram Hussain Sipra, Civil Judge/Judicial Magistrate (PW-5) on 14.07.2016.

6. On 15.07.2016, investigation of this case was entrusted to Younas Ali Inspector (PW-8) who recorded statements of PWs regarding identification parade. On 02.08.2016, he obtained physical remand of the accused persons. During investigation, on 16.08.2016, in pursuance of his disclosure, Sana Ullah alias Fouji appellant led to the recovery of amount Rs.5,00,000/- (P-4/1-5 & P-5/1-5), Q-Mobile phone power-9 (P-6), two SIM cards (P-7/1-2) and two batteries (P-8/1-2) which he took into possession through recovery memo (Exh.PC). On the same day in pursuance of his disclosure, Sana Ullah alias Fouji appellant also led to the recovery of red coloured motorcycle bearing registration No.2127-BNK (P-9) which he took into possession through recovery memo (Exh.PD). Rashid Mehmood appellant led to the recovery of amount of Rs.2,00,000/- (P-10/1-2 & P-11/1-5), which Investigating Officer took into possession through recovery memo (Exh.PE). Thereafter, in pursuance of his disclosure Jamshaid alias Bablu appellant led to the recovery of Rs.2,00,000/- (P-1, P-2/1-5 & P-3) which he (PW-8) took into possession through recovery memo Exh.PB. He added offence punishable Section 201 PPC in the case because mobile phone and SIM card No.0311-8978259 were not recovered and as those were allegedly thrown by accused somewhere. During the investigation, Investigating Officer found the accused persons connected with the crime, consequently, report under Section 173 Cr.P.C. was prepared against them.

7. After submission of report under Section 173 Cr.P.C., learned trial court indicted the appellants vide order dated 09.05.2017, to which they pleaded not guilty and claimed trial. Prosecution, in order to establish its case against the appellants, produced as many as nine (9) prosecution witnesses.

8. Abdul Sattar (PW-3) is complainant of this case. Muhammad Iftekhar (PW-4) is the witness of recoveries, as well as, of test identification parade. Mukarram Hussain Sipra, Judicial Magistrate (PW-5) supervised the process of identification parade. Investigation in this case was conducted by Arshad Zaman Inspector (PW-6), Younas Ali Inspector (PW-8) and Mohammad Akram Kaifi, SI (PW-9).

9. After closure of prosecution evidence, the appellants were examined under Section 342, Cr.P.C. wherein they refuted the allegations levelled against them in the prosecution evidence. Upon completion of trial, the learned trial court found case against the appellants to have been proved beyond shadow of reasonable doubt, thus, convicted and sentenced them as mentioned and detailed above.

10. Arguments heard, record perused.

11. In this case, the prosecution case mainly hinges upon evidence of payment of ransom, release of minor allegedly kidnapped, identification parade and recovery of ransom amount & other articles on the pointing out of the appellants.

Demand of Ransom

12. After careful examination of the record available on the file, it evinces that the alleged occurrence took place on 25.06.2016 at *Sham Wela* and none had seen the accused persons while kidnapping the minor, whereas it was reported to the police by Abdul Sattar complainant (PW-3) on the next day i.e. 26.06.2016 at 11:00 a.m. with the assertion that the unknown accused persons had kidnapped his grandson for some unknown reasons. In the crime report, the complainant did not mention the factum of receiving telephonic call of unknown accused from mobile No.0311-8978259 on his mobile phone No.0332-7040319 demanding ransom for release of his grandson, notwithstanding the fact that soon

after 2/3 hours of alleged occurrence, he supposedly received aforesaid telephonic call made by the accused persons. For ready reference, relevant extracts of statement of PW-3 are reproduced hereinbelow:

“On the same date after two/three hours I received Mobile phone call on my cell No.0332-7040319 from cell No.0311-8978259 and unknown caller said that they had abducted my grandson Ali Haider for ransom and they demanded Rs.15,00,000/- (fifteen lac) for his release.....

.....On the next day i.e. 26.6.2016 after receiving phone call of the accused persons, I got registered this case at about 11:00/12:00 noon.....

.....I had informed police at the time of registration of F.I.R. that I had received Mobile phone call from a cell phone number starting with the digits of 0311 and had asked about search for its location.”

Cellular Phone Number Used for Demand of Ransom

13. The record reveals that the investigation of this case was conducted by three Investigating Officers i.e. Arshad Zaman Inspector (PW-6), Younas Ali Inspector (PW-8) and Muhammad Akram Kaifi Sub-Inspector (PW-9), but none of them got verified the ownership of SIM (Subscriber Identity Module) card number 0311-8978259 allegedly used by the appellants for demanding ransom from the complainant to connect them with the commission of alleged offence. Call Detail Record (CDR) of aforementioned number was tendered in evidence by the prosecution as P.12 but such record did not provide any details qua the ownership of aforementioned mobile number allegedly used by the appellants. CDR of another mobile number 0300-3737675 was tendered in evidence as P.13 but nothing is available on the record that in what context aforementioned mobile number was used. Strict legal criterion to use CDR as evidence has been provided in Mian Khalid Pervaiz¹ and Azeem Khan² by the revered Supreme Court of Pakistan. Without

¹ Mian KHALID PERVIZ vs. The STATE through Special Prosecutor ANF and another – 2021 SCMR 522

² AZEEM KHAN and another vs. MUJAHID KHAN and others – 2016 SCMR 274

transcript of the calls or end to end audio recording, CDR is not worth reliance. It was observed by the esteemed Supreme Court of Pakistan in Mian Khalid Pervaiz supra as infra:

“Mere production of CDR DATA without transcripts of the calls or end to end audio recording cannot be considered/used as evidence worth reliance. Besides the call transcripts, it should also be established on the record that callers on both the ends were the same persons whose calls data is being used in evidence.”

Dictum laid down in Azeem Khan supra, in Para No. 22, in addition to aforementioned requirement, also makes it compulsory for prosecution to produce the competent witness who provides CDR to investigating agency. Such CDR should conclusively show that mobile phone used in the occurrence is owned by the accused and should also show the location from where calls were made. CDR available on the record neither shows that mobile number used for demand of ransom amount was owned by any of the appellants nor competent witness who generated such record and provided to investigating agency was produced before the learned trial Court. In view of what has been discussed above, we are compelled to hold that CDR, as tendered by the prosecution, did not advance its case and evidentiary value of such record is next to nothing being inconclusive.

Payment of Ransom Amount and Release of Minor

14. As per prosecution version, after negotiation ransom amount to the tune of Rs.9,00,000/- for the release of the minor kidnappee was settled between the complainant and appellants. According to Muhammad Iftekhar (PW.4) ransom was allegedly paid to two of the appellants, namely, Jamshaid alias Bablu and Sanaullah alias Fouji by him and Muhammad Rafique (given up PW) at Baghrian Road, Muslim Chowk, Lahore and thereafter minor was released within their sight after

ten minutes by appellant Rashid Mahmood. PW.4 did not point his finger at the appellants in Court rather, astonishingly, ascribed roles according to their sitting arrangements during TIP. It is an admitted fact that the complainant (PW-3) was not the eyewitness of the case from kidnapping to payment of ransom and release of his minor grandson, whereas the prosecution did not examine the minor kidnappee as a witness. Entire prosecution case revolves around the testimony of PW.4 Muhammad Iftekhar. Muhammad Rafique the other eye-witness of payment of ransom and release of minor was given up by the prosecution without any plausible explanation, which leads to an adverse inference under Article 129 (g) of Qanun-e-Shahadat, 1984 that had he been produced in the dock he would have not supported the prosecution case.³ Only substantive evidence against the appellants available on the record is testimony of PW.4 Muhammad Iftekhar who paid ransom to two unknown accused persons and third unknown accused released the minor allegedly kidnapped. It is a settled legal proposition of criminal law that where accused are not previously known to witnesses, TIP must be conducted to rule out the possibility of false implication or misidentification.

Test Identification Parade (TIP)

15. The record reflects that the appellants were arrested in this case on 29.06.2016 by Arshad Zaman Inspector (PW-6), who sent them to judicial lock-up for the purpose of TIP, which was conducted under the supervision of Mr. Mukarram Hussain Sipra, Magistrate Section-30 (PW-5) on 14.07.2016 within the premises of District Jail, Bahawalnagar. It would be advantageous to explicate the purpose, nature and scope of TIP in criminal cases.

³ MUHAMMAD SALEEM v. MUHAMMAD AZAN and another – 2011 SCMR 474

Relevance and Purpose of Test Identification Parade (TIP)

16. Article 22 of Qanun-e-Shahadat, 1984 deals with the identification of a person. Where a court has to determine the identity of any person, any fact which establishes such identity is relevant. The identity of a person can be established by the evidence of persons who know him. The evidence of TIP is relevant and received under Article 22 of Qanun-e-Shahadat, 1984. The law governing its procedure is contained in High Court Rules and Orders, Vol. III, Part-C, under Rule 26.32 of Police Rules, 1934 and judicial prescriptions pronounced in judgments of esteemed Supreme Court of Pakistan and of this Court. Article 22 Qanun-e-Shahadat, 1984 has been reproduced hereinafter:

22. Facts necessary to explain or introduce relevant facts: Facts necessary to explain or introduce a fact in issue or relevant fact, or which support or rebut an inference suggested by a fact in issue or relevant fact, or which establish the identity of anything or person whose identity is relevant, or fix the time or place at which any fact in issue, or relevant fact happened, or Which show the relation of parties by whom any such fact was transacted, are relevant in so far as they are necessary for that purpose.

The purpose of the identification parade is to find out whether accused is the actual perpetrator of the crime in question. It is essential where the name of the offender is not known to those who claim to be eye-witnesses of the crime, but they state that although they did not know the offender earlier, they could recall his facial features, physique and age in sufficient detail and would also be able to identify him if and when that accused is brought before them again. The purpose of prior TIP is to test and strengthen the veracity of eye-witnesses. Such TIP is beneficial, for both, the accused and the investigating agency. It enables the Investigating Officer to determine whether the witnesses had actually witnessed the perpetrator of the crime and test their capacity

to identify him and thereby to exonerate the accused or implicate him on the strength of incriminatory evidence in shape of TIP.

TIP is merely corroborative in nature

17. The substantive evidence is the evidence of identification by witness in court and the TIP provides corroboration to the identification of the accused in court. TIP is only considered as corroborative piece of evidence.⁴ Justice M. Monir in his celebrated book 'Law of Evidence' writes that 'the test identification is considered as safe rule of prudence for corroboration. Though the holding of the identification parade may not be substantive evidence, yet such parades are used for corroboration purposes in order to believe or not the involvement of the persons brought before the Court for the commission of the crime'.⁵ It was observed by the revered Supreme Court of Pakistan in Shafqat Mahmood⁶ in Para No. 9 of the Judgment that:

"It is also settled principle of law that picking out of accused in identification parade is not a substantive piece of evidence. Such evidence is merely corroborative piece of evidence."

It was held in Rameshwar Singh⁷ by the Supreme Court of India while deliberating upon the nature of identification parade as infra:

"Before dealing with the evidence relating to identification of the appellant it may be remembered that the substantive evidence of a witness is his evidence in court but when the accused person is not previously known to the witness concerned then identification of the accused by the witness soon after the former's arrest is of vital importance because it furnishes to the investigating agency an assurance that the investigation is proceeding on right lines in addition to furnishing corroboration of the evidence to be given by the witness later in court at the trial."

⁴ GHAZANFAR ALI @ PAPPU and another vs. The State – 2012 SCMR 215, MUHAMMAD AKRAM RAHI and others vs. THE STATE and others – 2011 SCMR 877 & MAH GUL vs. THE STATE – 2009 SCMR 4

⁵ Law of Evidence by Chief Justice M. Monir, Seventeenth Edition Page No. 209-210.

⁶ SHAFQAT MEHMOOD and others vs. THE STATE – 2011 SCMR 537

⁷ Rameshwar Singh vs State of Jammu & Kashmir - AIR 1972 SC 102

No Role During the TIP

18. It is an admitted fact that although Muhammad Iftikhar (PW-4) rightly picked up the appellants during TIP as culprits, but he did not describe their respective roles played during the alleged occurrence. It has constantly been observed by prestigious Supreme Court of Pakistan that identification of an accused person without reference to the role allegedly played by him during the occurrence is hardly of any evidentiary value. The most celebrated principle pertaining to identification parade was enunciated in Lal Singh⁸ where a Division Bench speaking through Justice Fforde observed as infra:

“The mere fact that a witness is able to pick out an accused person from amongst a crowd does not prove that he has identified that accused person as having taken part in the crime which is being investigated, 'It might merely mean that the witness happens to know that accused person. The principal evidence of identification is the evidence of a witness given in Court as to how and under what circumstances he came to pick out a particular accused person and the details of the part which that accused took in the crime in question. The statement made by such a witness at an identification parade might be used to corroborate his evidence given in Court, but other wise the evidence of identification furnished by an identification parade can only be hearsay except as to the simple fact that a witness was in a position to show that he knew a certain accused person by sight.”

Aforementioned, approximately a century old, principle was reiterated by the prestigious Supreme Court of Pakistan in chain of judgments⁹ and there is no cavil to the legal proposition that Identification parade loses its sanctity, when no role has been attributed to the accused during commission of offence. Evidentiary value of TIP, where no role has been attributed to accused, is next to nothing. Same view was reaffirmed in

⁸ Lal Singh vs. Crown – 1924 ILR 396

⁹ KAMAL DIN alias KAMALA Versus The STATE---2018 S C M R 577, HAKEEM and others Versus The STATE-2017 SCMR 1546, Shafqat Mehmood and others v. The State - 2011 SCMR 537, Sabir Ali alias Fauji v. The State - 2011 SCMR 563, AZHAR MEHMOOD and others vs. The STATE - 2017 S C M R 135, Muhammad Fyyaz vs. The State – 2012 SCMR 522, Muhammad Ayaz vs. The State – 2011 SCMR 769, Bacha Zeb vs. The State – 2010 SCMR 1189, Ghulam Qadir vs. The State – 2008 SCMR 1221, Muhammad Pervaiz and others vs. The State – 2007 SCMR 670, Zia Ullah alia Jaji vs. The State – 2005 SCMR 1461 & Mahmood Ahmed vs. The State 1995 SCMR 127.

Kamal Din¹⁰ by the revered Supreme Court of Pakistan after considering number of Judgments in following terms:

“It is also pertinent to mention here that the proceedings of the test identification parade brought on the record of this case clearly show that the appellant had not been picked up by the eye-witnesses in that parade with reference to any role played by him during the occurrence in issue. It has repeatedly been held by this Court that identification of an accused person without reference to the role allegedly played by him during the occurrence is shorn of any evidentiary value”

Even Younas Ali Inspector (PW-8)/Investigating Officer during cross-examination candidly admitted that Muhammad Iftekhar (PW-4) did not describe specific roles of the appellants in his statement under Section 161 Cr.P.C. For ready reference, relevant extracts of his statement are reproduced hereinafter:

“It is correct that Rafique and Iftekhar PWs did not mention the specific role of Rashid accused in their statements u/s 161 Cr.P.C.....”

“It is correct that when I recorded the statements of PWs Rafique and Iftekhar after identification parade, they did not mention the specific role of accused Sana Ullah Fouji and Jamshaid.”

Joint TIP

19. Apart from above discussion, we have also observed with great concern that the TIP in this case was conducted jointly, wherein the appellants were identified in one go while sitting jointly in three rows. Joint TIP has been rendered unsafe and untrustworthy by the apex Court, hence, same is not worthy of reliance. This view is fortified by the authoritative dictum laid down in Mian Sohail Ahmed¹¹ wherein it was observed as infra:

“Placing two or more suspects jointly in an identification parade (or joint parade), tarnishes the homogeneity, sameness and identicalness of the members of the parade and defeats the very purpose of having a

¹⁰ Kamal Din alia Kamala vs. The State – 2018 SCMR 577

¹¹ Mian Sohail Ahmed vs. The State - 2019 SCMR 956

test identification parade. Joint parade passes for suggestive and indicative identification, compromising the reliability of the witness and opening doors to misidentification, rendering TIP unsafe and untrustworthy.”

To strengthen this view further reliance can be placed on catena of dictums laid down in various cases.¹² Joint TIP of appellants conducted in this case does not advance the prosecution case as same is not worthy of reliance and against the law pronounced by the apex Court of this Country.

No descriptions of accused to be identified and of dummies

20. TIP proceedings (Exh.PF) are silent qua the description of facial features, complexion, exact heights, ages and other resembling features of the unknown accused persons with dummies which seriously diminish the evidentiary value of such identification parade. Reliance can be placed on Mian Sohail Ahmed supra wherein it was held that:

“TIP proceedings are silent regarding the description of the unknown accused given by the complainant in the report. TIP can only commence, once suspects matching the description in the crime report or in the statements of the witnesses under section 161, Cr.P.C. have been arrested. Matching the description in the first information report is the starting point towards identification of the unknown accused. It is, therefore, uncertain how the appellants were hurled and lined-up for the identification parade without the Magistrate first matching the description given by the complainant. Selection of the suspects, without any correlation with description of the accused in the first information report, raises doubts and makes the identification proceedings unsafe and doubtful rendering the identification evidence inconsequential.”

Aforementioned discussed factums adversely hit the sanctity of TIP, therefore, no credence can be attached to it. Joint TIP, where no roles have been ascribed to the appellants in which capacity they participated in the occurrence and where no description of suspected accused and

¹² Lal Pasand v. The State (PLD 1981 SC 142), Ziaullah alias Jajj v. The State (2008 SCMR 1210), Bacha Zeb v. The State (2010 SCMR 1189), Shafqat Mehmood and others v. The State (2011 SCMR 537) and Gulfam and another v. The State (2017 SCMR 1189)

other dummies have been provided in proceedings of TIP, is not worthy of reliance. We are left with no other option than to hold that reliance can not be placed to sustain the conviction of the appellants on TIP conducted in sheer violation of settled law, therefore, same is discarded.

Non-production of minor/kidnaped as a witness

21. The minor, who was allegedly kidnapped, did not appear as a witness before the trial court. Non-production of kidnapped child before the trial court, casts a serious doubt on the prosecution version. A child, irrespective of his age, is competent to appear as a witness before the trial court, subject to his fulfilling the conditions precedent provided under Articles 3 and 17 of the Qanun-e-Shahadat, 1984.¹³ Prosecution should have produced the minor allegedly kidnapped in this case and it was the trial court to determine his competence to be a witness after applying the '*rationality test*' as prescribed in Raja Khurram Ali Khan supra. Nonappearance of the kidnapped child before the trial court proved the last nail in the coffin of prosecution case.

Recovery of Ransom Amount and other Articles

22. Another piece of evidence available on record against the appellants is recovery of ransom amount comprising of currency notes worth Rs.9,00,000/- bearing signatures of the complainant on its back on their pointing out on 16.08.2016 i.e. after about one month and twenty days of alleged occurrence. On 16.08.2016, allegedly in pursuance of disclosures made by the appellants, Rs.2,00,000/- were recovered on the pointing out of Jamshaid alias Bablu appellant, Rs.2,00,000/- on the pointing out of Rashid Mehmood appellant and Rs.5,00,000/- on the pointing out of Sana Ullah alias Fouji appellant. It is very astonishing

¹³ Raja Khurram Ali Khan and Two other vs. Tayyaba Bibi and another – PLD 2020 SC 146

fact that the complainant, who is a layman having no acquaintance with law, without the legal advice by the Investigating Officer put his signatures on the currency notes on his own apparently for the reason that when the same will be recovered at subsequent stage, it will lend strong corroboration to his case. In the same way, amazingly the accused persons kept the tainted money in their houses and did not spend even a penny, which is not appealable to a man of prudent mind. In the given circumstances, the recovery of ransom amount on the pointing out of the appellants seems to be planted just to strengthen the prosecution case. So far as recovery of motorcycle and mobile phone along with two batteries on the pointing out of Sana Ullah alias Fouji appellant is concerned, the Investigating Officer (PW.8) during cross-examination, in categorical terms, deposed that there is no record on file regarding ownership of said articles in the name of Sana Ullah alias Fouji appellant. Even otherwise it is not the prosecution case that the recovered motorcycle was used by any of the appellants during the commission of alleged occurrence. Moreover, recovery is considered as corroborative piece of evidence and where substantive evidence is not worthy of reliance, the same cannot be taken into consideration to sustain conviction.

Conclusion

23. To sum up, above discussion clearly establishes that prosecution evidence is replete with discrepancies and doubts and is not worthy of reliance to convict and sentence the appellants. It is settled principle of criminal law that accused cannot be convicted merely on the basis of probabilities rather his guilt should be firmly proved by the evidence produced in the case¹⁴. Further, it is trite law that for extending benefit of doubt, it is not necessary that there should be several circumstances, rather one reasonable doubt is sufficient to acquit an

¹⁴ Naveed Asghar and 2 others v. The State, (PLD 2021 Supreme Court 600)

accused, not as a matter of grace but as of right. In Naveed Asghar supra, concept of benefit of doubt was expounded in detail by the august Supreme Court of Pakistan in the following words: -

“33. ...The rule of giving benefit of doubt to accused person is essentially a rule of caution and prudence, and is deep rooted in our jurisprudence for safe administration of criminal justice. In common law, it is based on the maxim, "It is better that ten guilty persons be acquitted rather than one innocent person be convicted.”

24. In consequence of the aforementioned discussion, while **allowing Crl. Appeals No.51-ATA/2018, 53-ATA/2018 and 86-ATA/2018**, the convictions and sentences recorded by the learned trial court vide judgment dated 17.01.2018 are **set aside** and the appellants are **acquitted** of the charges by extending them benefit of doubt. They are directed to be released forthwith if not required in any other case.

(SADIQ MAHMUD KHURRAM)
JUDGE

(ALI ZIA BAJWA)
JUDGE

Approved for Reporting

(SADIQ MAHMUD KHURRAM)
JUDGE

(ALI ZIA BAJWA)
JUDGE

Haider Shah